

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600449	ALCARZAR vs SAN JACINTO UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

The Court orders Defendant to meet and confer in person, or via phone or videoconference with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer and motion to strike. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and motion to strike and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall, 10 days before the continued hearing date, do one of the following: (1) vacate the hearing on the demurrer, and file an Answer; (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means by which the parties met and conferred and identify the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a).)

The hearing is continued to September 9, 2026, at 8:30 a.m.